

foreign government without possession, both before *The Navemar*, *supra*, *Long v. The Tampico*, 16 F. 491, 493, 494 (opinion by Judge Addison Brown); *The Johnson Lighterage Co. No. 24*, 231 F. 365; *The Attualita*, 238 F. 909; *The Carlo Poma*, 259 F. 369, 370, reversed on other grounds, 255 U. S. 219; *The Beaverton*, 273 F. 539, 540; and since, *Ervin v. Quintanilla*, *supra*, 941; *The Uxmal*, 40 F. Supp. 258, 260; *The Katingo Hadjipatera*, 40 F. Supp. 546, 119 F. 2d 1022; *The Ljubica Matkovic*, 49 F. Supp. 936.

Whether this distinction between possession and title may be thought to depend upon the aggravation of the indignity where the interference with the vessel ousts the possession of a foreign state, *Sullivan v. Sao Paulo*, 122 F. 2d 355, 360, it is plain that the distinction is supported by the overwhelming weight of authority. More important, and we think controlling in the present circumstances, is the fact that, despite numerous opportunities like the present to recognize immunity from suit of a vessel owned and not possessed by a foreign government, this government has failed to do so. We can only conclude that it is the national policy not to extend the immunity in the manner now suggested, and that it is the duty of the courts, in a matter so intimately associated with our foreign policy and which may profoundly affect it, not to enlarge an immunity to an extent which the government, although often asked, has not seen fit to recognize. We have considered but do not find it necessary to discuss other contentions of petitioner, as they are without merit.

*Affirmed.*

MR. JUSTICE FRANKFURTER, concurring.

In *Berizzi Bros. Co. v. The Pesaro*, 271 U. S. 562, this Court held for the first time that "merchant ships owned and operated by a foreign government have the same immunity that warships have." It did so not because the